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June 26, 2025

Via E-Mail

Hon. Richard C. Ambrow Jr.
Office of Administrative Judges
Federal Maritime Commission
800 North Capitol St. NW
Washington, DC 20573

Re: Kanu v. Ejike Dickson Eze d/b/a Ejike International Trade Ltd.,
SeaLines International, SeaMates International Inc. and Maersk
FMC Docket No. 25-05

Hon. Judge Ambrow,

We represent SeaLines International and SeaMates International, Inc. (collectively "SeaLines") in the above referenced proceeding.

Yesterday, we received a letter from Complainant, Francis Sheka Kanu, seeking to voluntarily withdraw the complaint and discontinue this proceeding and seemingly indicating that there was an agreement between Complainant and Respondent, Ejike Dickson Eze, whereby the goods are being carried to their original destination. Complainant's letter is silent as to whether the request to dismiss is with, or without, prejudice.

SeaLines has no objection to the Court ordering that this matter be dismissed, so long as that dismissal is with prejudice against Complainant.

Complainant is not permitted to voluntarily dismiss the case pursuant to Section 502.72(a)(1) of the FMC's Rules of Procedure (46 CFR Part 502) because SeaLines already filed its Motion to Dismiss the complaint. Complainant is not permitted to voluntarily dismiss the case pursuant to Section 502.72(a)(2) of the FMC's Rules because SeaLines has not entered into a stipulation agreeing to dismiss the case.

Pursuant to Section 502.72(a)(3) of the FMC's Rules, the Court may issue an order dismissing this case "on terms the presiding officer considers proper." We believe it is proper for the Court to dismiss the complaint with prejudice against Complainant.

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First, given that Complainant's letter seems to indicate that the goods are being carried to their original destination, it appears that Complainant's case is now moot. In addition, SeaLines has spent time, effort and money to defend itself in this proceeding by filing a Motion to Dismiss the case on the merits. Complainant has not opposed SeaLines' Motion to Dismiss. In addition, in an effort to provide Complainant with every opportunity to fairly present its case, the Court has delayed ruling on SeaLines' Motion to Dismiss and has issued two orders providing Complainant with deadlines within which to move to amend its complaint. Complainant has failed to timely comply with the deadlines set forth in both of the Court's orders and has yet to file a motion for leave to amend the complaint. Complainant has not acted to pursue its case and now has requested a dismissal. SeaLines would be prejudiced by a dismissal of this case without prejudice, which would allow Complainant to simply re-file this case against SeaLines. Accordingly, SeaLines respectfully requests that any order dismissing the case be with prejudice against Complainant.

In the event the Court is considering an order dismissing the case without prejudice, SeaLines respectfully requests that the Court rule on their Motion to Dismiss on the merits so that Complainant is not permitted to re-file this same case against SeaLines in the FMC and so that SeaLines is not required to again appear to defend against these same allegations by Complainant before this tribunal.

Accordingly, on behalf of SeaLines, we respectfully request that the Court grant Complainant's request to dismiss this case, but that any such dismissal be with prejudice against Complainant.

Respectfully submitted,


John Greco

cc: Francis Sheka Kanu (francisgats@gmail.com)
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